Claims Payment Policy

Subject: Gender-Specific Services for Transgender or Intersex Members

Application: Medicare Advantage and Commercial Products
Policy number: CP2015008
Related policies: N/A

Effective date: 07/2016
Revision date: 06/2023

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Overview

This policy outlines Humana's billing guidance for reporting a gender-specific service for a *transgender* or *intersex* member.

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Medicare Advantage and Commercial Payment Policy

In addition to this policy, claims payments are subject to other plan requirements for the processing and payment of claims, including, but not limited to, requirements of medical necessity and reasonableness and applicable referral or authorization requirements.

For a service that is not otherwise excluded, Humana allows a medically necessary gender-specific service provided to a *transgender* or *intersex* member. Humana recognizes *condition code 45* and *modifier KX*, when submitted on a claim for a charge for a gender-specific service, as an indication that the service may be medically necessary, despite an apparent conflict between reported gender and the gender-specific service.

Humana encourages providers to follow the appropriate Medicare Program guidance for correctly coding a gender-specific service and diagnosis for a *transgender* or *intersex* member. For a *facility claim*, Humana encourages a provider to report *condition code 45* when billing for an inpatient or outpatient service that is gender-specific. For a *professional claim*, Humana encourages a provider to include *modifier KX* with a procedure code for a gender-specific service.

Definitions of *Italicized* Terms

- ***Condition code 45:*** Gender incongruence.
- ***Facility claim:*** Charges for facility services submitted on the UB-04 form, or its electronic equivalent.
- ***Intersex:*** Umbrella term for people with congenital inconsistency between external genitalia, internal gonadal tissue or chromosomal sex.
- ***Modifier KX:*** Requirements specified in the medical policy have been met.
- ***Professional claim:*** Charges for professional services submitted on the CMS-1500 form, or its electronic equivalent; or charges for professional services submitted on the UB-04 form, or its electronic equivalent.
- ***Transgender:*** Umbrella term for people whose gender identity and/or gender expression differs from what is typically associated with the sex they were assigned at birth.

References

- U.S. Government Publishing Office website. Federal Register, Vol. 81, No. 96. Department of Health and Human Services. Nondiscrimination in Health Programs and Activities: Final Rule. www.govinfo.gov
- Department of Health and Human Resources website. Section 1557 of the Patient Protection and Affordable Care Act. www.hhs.gov.
- Centers for Medicare & Medicaid Services website. Departments of Labor, Health and Humana Services and the Treasury. FAQs about Affordable Care Act Implementation (Part XXVI). www.cms.gov.
- Centers for Medicare & Medicaid Services website. Medicare Claims Processing Manual. Chapter 32 – Billing Requirements for Special Services. Section 240 – Special Instructions for Services with a Gender/Procedure Conflict. www.cms.gov.
- Centers for Medicare & Medicaid Services website. Transmittal 1877, Change Request 6638 – Instructions Regarding Processing Claims Rejecting for Gender/Procedure Conflict. www.cms.gov.
- American Medical Association's CPT® and associated publications and services.
- Optum. Uniform Billing Editor. E-book.
- UpToDate website. Evaluation of the Infant with Atypical Genitalia. www.uptodate.com.
- National Center for Transgender Equality website. Medicare. www.transequality.org.
- GLAAD website. GLAAD Transgender Media Program. glaad.org.
- Lambda Legal website. Lambda Legal, the New York City Bar, and the Human Rights Campaign Foundation. Creating Equal Access to Quality Health Care for Transgender Patients: Transgender-Affirming Hospital Policies. www.lambdalegal.org.

General Humana Resources

- Availity – Providers can register for access to information on a variety of topics such as eligibility, benefits, referrals, authorizations, claims and electronic remittances.
- Claims processing edit notifications – Alerts of upcoming claims payment changes are posted on the first Friday of each month.

- Claims resources – Providers can find information on referrals, authorizations, electronic claim submissions and more.
- Education and news – This page can help you find clinical guidelines, educational tools, Medicare and Medicaid resources, our provider magazine and other resources to help you do business with us.
- Making it easier – This page contains an educational series for providers and healthcare professionals.
- Medical and pharmacy coverage policies – Humana publishes determinations of coverage of medical procedures, devices and medications for the treatment of various conditions. There may be variances in coverage among plans.

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